

SENATE No. 1441

The Commonwealth of Massachusetts

PRESENTED BY:

Lydia Edwards

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act simplifying inclusionary zoning.

PETITION OF:

NAME:

Lydia Edwards

DISTRICT/ADDRESS:

Third Suffolk

SENATE No. 1441

By Ms. Edwards, a petition (accompanied by bill, Senate, No. 1441) of Lydia Edwards for legislation relative to inclusionary zones in affordable housing. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act simplifying inclusionary zoning.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 5 of chapter 40A, as appearing in the 2022 Official Edition, is hereby amended
2 by adding the following paragraph:-

3 (5) An inclusionary zoning ordinance or by-law that requires not more than 13 percent of
4 units be affordable; provided, however, that such zoning ordinance or by-law shall not unduly
5 constrain the production of housing in the area impacted by the inclusionary zoning ordinance or
6 by-law; provided further, that such ordinance or by-law shall require a density bonus; and
7 provided further, that the executive office of housing and livable communities may issue
8 guidelines or promulgate regulations consistent with this paragraph.